court held that his power was ſuſpended during the union of thoſe offices; and therefore iſſued a peremptory *mandamus* to him, as warden, to admit a perſon intitled to a chaplainſhip[g]. Alſo it is ſaid[h], that if a founder of an eleemoſynary foundation appoints a viſitor, and limits his juriſdiction by rules and ſtatutes, if the viſitor in his ſentence exceeds thoſe rules, an action lies againſt him; but it is otherwiſe, where he miſtakes in a thing within his power.

IV. WE come now, in the laſt place, to conſider how corporations may be diſſolved. Any particular member may be diſfranchiſed, or loſe his place in the corporation, by acting contrary to the laws of the ſociety, or the laws of the land; or he may reſign it by his own voluntary act[i]. But the body politic may alſo itſelf be diſſolved in ſeveral ways; which diſſolution is the civil death of the corporation: and in this caſe their lands and tenements ſhall revert to the perſon, or his heirs, who granted them to the corporation; for the law doth annex a condition to every ſuch grant, that if the corporation be diſſolved, the grantor ſhall have the lands again, becauſe the cauſe of the grant faileth[k]. The grant is indeed only during the life of the corporation; which *may* endure for ever: but, when that life is determined by the diſſolution of the body politic, the grantor takes it back by reverſion, as in the caſe of every other grant for life. And hence it appears how injurious, as well to private as public rights, thoſe ſtatutes were, which veſted in king Henry VIII, inſtead of the heirs of the founder, the lands of the diſſolved monaſteries. The debts of a corporation, either to or from it, are totally extinguiſhed by it's diſſolution; ſo that the members thereof cannot recover, or be charged with them, in their natural capacities[l]: agreeable to that maxim of the civil law[m], "*ſi quid univerſitati* "*debetur, ſingulis non debetur; nec, quod debet univerſitas, ſinguli* "*debent.*"

[g] Stra. 797.
[h] 2 Lutw. 1566.
[i] 11 Rep. 98.
[k] Co. Litt. 13.
[l] 1 Lev. 237.
[m] *Ff.* 3. 4. 7.

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